

Tentative Rulings for Department 501

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Tentative Ruling

Re: ***Narissa Melero v. City of Sanger***
Superior Court Case No. 26CECG00595
Sarah Watson v. City of Sanger
Superior Court Case No. 26CU00931

Hearing Date: September 24, 2026 (Dept. 501)

Motion: By Melero Plaintiffs to Consolidate Actions

Tentative Ruling:

To grant consolidation for pretrial purposes only, with 26CECG00595 designated as the lead case. The cases will be tried separately. (Code Civ. Proc., § 1048.)

Explanation:

Case No. 26CECG00595 was initiated on 2/3/2026 with the filing of the Complaint by The Wagner Law Group representing seven plaintiffs – Narissa Melero, Julie Taylor, Georgina Simmons, Kriss Viramontes, Erica Alcorn, Sarah Watson and Lisa Salas. Plaintiffs allege in the operative pleading, the First Amended Complaint, that they were victims of sexual assault perpetrated by defendant J. Dewhawn Torrence, a police officer for the Sanger Police Department. He allegedly committed the assaults while on duty as a police officer and under color of law. Torrence was convicted of kidnapping and sexually assaulting four women (including plaintiffs Watson and Salas) and is serving five life sentences. Plaintiffs sue Torrence, the City of Sanger, and the Sanger Police Department.

On 4/27/2026 Brian Whelan substituted as counsel for plaintiffs Watson and Salas ("Watson plaintiffs"). On 5/12/2026 they dismissed their claims without prejudice and filed a separate action, Case No. 26CU00931. The remaining five plaintiffs in Case No. 26CECG00595 ("Melero plaintiffs") move to consolidate the two actions for all purposes, including trial. The motion is opposed by Watson plaintiffs as well as by the City of Sanger and Sanger Police Department ("Sanger defendants").

The purpose of consolidation is to enhance trial court efficiency by avoiding unnecessary duplication of evidence and procedures, and to avoid the substantial danger of inconsistent adjudications. (*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978.)

The party moving for consolidation must file a notice of motion in each of the pending lawsuits, while supporting papers are filed only in the lead (lower numbered) case. (Cal. Rules of Court, Rule 3.350(a).) The requirements of Rule 3.350 have been met. All the moving party needs to show in its motion is that the issues in each case are basically the same, and that "economy and convenience" would be served by consolidation. (*Jud Whitehead Heater Co. v. Obler* (1952) 111 Cal.App.2d 861, 867.) The

court has broad discretion to grant or deny the motion. (*Fellner v. Steinbaum* (1955) 132 Cal.App.2d 509, 511.)

Melero plaintiffs move to consolidate the two actions for all purposes, contending that all plaintiffs' claims arise from sexual assaults by Torrence, and involve similar claims against the Sanger defendants.

However, each instance of assault for the plaintiffs was separate and distinct. The alleged assaults of the plaintiffs are temporally and factually distinct. Melero alleges conduct in approximately 2015; Taylor in 2016; Salas in 2017; Simmons from 2017 into 2018; Watson in March 2018; Viramontes in July 2019; and Alcorn in August 2020. (FAC ¶¶ 6, 9, 14, 17, 20.) In a joint trial the jury would have to separate seven separate incidents.

Watson and Salas are the only victims who were the subject of federal prosecution of Torrence, resulting in his conviction. Torrence was convicted and sentenced for felony crimes against Watson and Salas, as well as other victims not involved in these lawsuits. (Wagner Decl., Ex. 3.) No criminal court adjudicated Torrence's alleged conduct toward any Melero plaintiff, none of whom testified at the federal trial. (Watson Decl., ¶ 9; Salas Decl., ¶ 11.) The Melero plaintiffs' pleading invokes conviction-based tolling under Code of Civil Procedure section 340.3 for Watson and Salas, but not for the other plaintiffs. (FAC ¶¶ 350, 362, 374, 386, 398, 422.) This evidences differences in the claims and proof a trial of the two sets of plaintiffs.

Watson plaintiffs deliberately chose to leave the seven-plaintiff action after considering how they wanted their claims to proceed. (Watson Decl., ¶ 6; Salas Decl., ¶ 6.) Neither personally knows the five remaining Melero plaintiffs or has personal knowledge of their alleged encounters. Both state that they do not want their claims tried with the Melero plaintiffs. (Watson Decl., ¶¶ 7-9, 12, 14; Salas Decl., ¶¶ 7-9, 14, 16.) The opposition points out that the jury would hear that Torrence was convicted beyond a reasonable doubt of criminal conduct against Watson and Salas while simultaneously deciding five separate allegations that were never adjudicated in the criminal case. Watson and Salas state that they do not want the federal criminal convictions arising from Torrence's conduct toward them used to bolster claims concerning events they did not witness, nor do they want credibility disputes, evidentiary issues, or factual circumstances unique to the other plaintiffs to affect the jury's consideration of their own claims. (Watson Decl., ¶ 10; Salas Decl., ¶ 12.)

Additionally, the Watson plaintiffs have been granted trial preference that is not available to, but apparently desired by, the Melero plaintiffs.

Certainly there are some common issues, particularly as relates to the Sanger Defendants. These issues – Torrence's employment and the City's policies, training, and supervision – can be handled through coordinated discovery without combining seven plaintiff-specific trials. (Code Civ. Proc., § 1048.) And it is noteworthy that despite these common issues pertaining specifically to the Sanger defendants' liability, they oppose consolidation.

For these reasons the court declines to grant consolidation for all purposes. However, even the opposing parties appear to recognize that efficiencies may be

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 09/18/26
(Judge's initials) (Date)